Tentative Rulings and Resolution Review Hearings
July 13, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.
The access code is 2480 682 3750. There is no attendee ID number, so just follow verbal instructions for prompt.
Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. **Please mute your telephone until your case is called.**
2. **Please do not place the call on hold.**
3. **Minimize all background noise during your call.**
4. **Please identify yourself, each time, prior to speaking with the court.**
5. **Disconnect when the court has completed your case or cases.**
6. **The court prohibits the recording of these proceedings.**

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8:30 a.m. Law and Motion

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ANGELL-MURRAY, ET AL. VS. C&K RESIDENTIAL HOMES LLC, ET AL.
CASE NUMBER: 24CV-0204149
Tentative Ruling on Motion to Enforce Settlement Agreement: Defendants C&K Residential Homes, LLC and Chaylene Victorine move for an order enforcing the Settlement Agreement and Release entered into by the parties and directing the Court to enter judgment of dismissal with prejudice as to all causes of action. The motion was properly noticed and is unopposed.

Merits: CCP § 664.6(a) provides that if parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. Here, the parties stipulated in a writing signed by the parties to settle this case for $21,000. Plaintiff agreed to file a dismissal of this action with prejudice, with all sides to bear their own attorney fees and costs, within five days of receipt of the settlement funds.

The Court finds that the Settlement Agreement is valid and enforceable. The Settlement Agreement provides for enforcement under CCP § 664.6. Defendant has performed under the Agreement by paying $21,000. Plaintiff has failed to perform (despite an unsuccessful attempt to do so) by failing to timely dismiss the matter with prejudice. The matter remains pending before this court has not been dismissed. Plaintiff has failed to attend several status review hearings and has not responded to an Order to Show Cause.

The Motion is **GRANTED**. The entire action of all parties and all causes of action is **DISMISSED** with prejudice. The clerk is directed to vacate all future dates and close the file.

ANGELL-MURRAY, ET AL. VS. C&K RESIDENTIAL HOMES LLC, ET AL.
CASE NUMBER: 24CV-0204149
Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on June 24, 2026, to Plaintiffs, for failure to timely seek default and failure to timely prosecute. No response to the OSC has been filed. However, the Court notes that due to a clerical error, this OSC was issued on erroneous grounds. This matter has settled and the Court intended to issue an OSC re Dismissal. The OSC re Sanctions is **DISCHARGED.** Sanctions will not be imposed.

CAVALRY SPV I, LLC VS. THOMAS
CASE NUMBER: 25CVG-00610
Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff and counsel, on December 17, 2025 for failure to timely serve pleadings on Defendant pursuant to CRC 3.110(b). The Complaint was filed on March 20, 2025. "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). It has now been over a year and there is no Proof of Service of Summons on file. Plaintiff has been provided with two continuances on the present OSC to accomplish service. At the most recent hearing, Plaintiff was ordered to file a status statement if no proof of service was on file. No status statement has been filed. Plaintiff remains in violation of CRC 3.110(b). Sanctions are imposed in the amount of $250 against Plaintiff and Counsel. The clerk is directed to prepare a separate order of sanctions. The Court will issue a new Order to Show Cause Re: Monetary Sanctions in the amount of $500 to Plaintiff and Counsel for their failure to timely serve the Defendant. The hearing on the new Order to Show Cause is set for **Monday, October 12, 2026, at 8:30 a.m. in Department 64.** The clerk is directed to prepare a new Order to Show Cause.

EYE VS. FAIRWAY OAKS MOBILE HOME PARK, ET AL.
CASE NUMBER: 25CV-0208669
Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on June 1, 2026 to Plaintiff Denise Eye, in pro per, for failure to timely serve all defendants as required by California Rules of Court, Rule 3.110(b). The Court notes that

a Substitution of Attorney was filed on June 4, 2026 and Plaintiff is now represented by counsel. Counsel has submitted a response to the OSC stating all defendants have now been served. Proofs of service have been filed for two of the three Defendants. There is no proof of service on file for Defendant Fairway Oaks Mobile Home Park. Based on the efforts of counsel, sanctions will not be imposed. The Court DISCHARGES the OSC. This matter is set for **Monday, September 14, 2026, at 9:00 a.m. in Department 64** for status of responsive pleadings and, if appropriate, trial setting. Plaintiff shall give notice. **No appearance is necessary on today's calendar.**

HILL, ET AL. VS. NELSON, ET AL.
CASE NUMBER: 25CV-0208635
Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff Kathleen Hill and her counsel on June 2, 2026 for their failure to timely serve pleadings on the defendants as required by CRC 3.110(b). The Complaint was filed on September 8, 2025. "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). It has now been over ten months and there is no Proof of Service of Summons on file. No written response to the Order to Show Cause was filed.

With no sufficient excuse for the delay, the Court will impose sanctions in the amount of $250 against Plaintiff and her counsel. The clerk is directed to prepare a separate Order of Sanctions. The Court will also issue an Order to Show Cause Re: Dismissal for failure to timely serve pursuant to CRC 3.110(b) and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, October 19, 2026, at 8:30 a.m. in Department 64**. The clerk is directed to issue an Order to Show Cause Re: Dismissal.

HOLLOWELL VS. LITTLEPAGE, ET AL.
CASE NUMBER: 25CV-0206936
Tentative Ruling on Motion to Deem RFAs Admitted: Defendant Joshua James Littlepage seeks an order deeming admitted the truth of matters specified in Defendant's Request for Admissions, Set One, which was served on Plaintiff William Edwin Hollowell by certified mail and email on December 18, 2025. The Motion has been properly noticed and is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Defendant's moving papers sufficiently demonstrate that the discovery was served by mail and email and Plaintiff has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c). Defendant requests sanctions of $3,060.00 consisting of 12 attorney hours at a rate of $250 per hour, plus a $60 filing fee. The Court finds the hourly rate reasonable and will award the filing fee. The Court will reduce estimated attorney hours by 6, because there was no opposition to review (1 hour) or reply to prepare (3 hours), and 3 hours for preparing and attending a hearing on this motion is excessive (1 hour is reasonable). The total reasonable fee and cost award is $1,560.00.

Defendant's Motion to Deem Request for Admission, Set One Admitted by Plaintiff is **GRANTED**. Sanctions of $1,560.00 are imposed against Plaintiff and are payable within 30 days of notice of entry of order. A proposed order has been lodged and will be modified.

JOHANSON VS. NORTH STATE GROCERY, INC
CASE NUMBER: 24CV-0206490
Tentative Ruling on Early Evaluation Conference: On August 25, 2025, Defendant North State Grocery, Inc. filed a "Request for Early Evaluation Conference." On February 9, 2026, the Court granted Defendant's request and issued a detailed tentative ruling outlining the requirements of the Early Evaluation Conference as provided in Labor Code section 2699.3(f). Defendant was instructed to submit a proposed order. On March 30, 2026, the Court issued the proposed order submitted by Defendant. The order did not contain the deadlines required by Labor Code section 2699.3. Regardless of whether the deadlines were included in the order, Defendant was aware of the deadlines based on the Court's prior ruling for the February 9, 2026 hearing. An issue has now arisen about Defendant's compliance with the requirements of section 2699.3(f) and whether this Court can issue a further Early Evaluation Conference or extend the statutory timeframes found in section 2699.3(f). The Court invited briefing on the matter. Plaintiff's briefing opposes a further Early Evaluation Conference, while Defendant's briefing argues for the process to proceed. The Court has reviewed section 2699.3 and finds that the statutory deadlines cannot be satisfied based on the conduct of the Defendant. The Court intends on lifting the stay and allowing the litigation to proceed but will hear from the parties at the time of the hearing. **An appearance is necessary on today's calendar to provide argument related to a further Early Evaluation Conference.**

LOZANO VS. COUNTY OF SHASTA
CASE NUMBER: 26CV-0210630
Tentative Ruling on Demurrer: Defendant, County of Shasta, demurs to the Complaint filed on May 11, 2026, by Plaintiff Ryan Lozano. Plaintiff has not opposed the demurrer.

As a preliminary matter, Plaintiff filed a First Amended Complaint on July 1, 2026. Generally, this would cause the demurrer to be moot; however, the First Amended Complaint was not signed by Plaintiff. Due to Plaintiff's failure to sign the amended complaint, the Court orders the First Amended Complaint filed on July 1, 2026, **STRICKEN**.

<u>Meet and Confer.</u> CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Renee Belcastro indicates that Defendant attempted to call Plaintiff to meet and confer but was unsuccessful. Defendant subsequently emailed with Plaintiff, and Plaintiff provided a new phone number where he could be reached. There is no indication that Defendant attempted to call Plaintiff at his new number to meet and confer on the demurrer. This is insufficient. The parties are reminded of their obligation to meet and confer in compliance with CCP § 430.41.

<u>Merits.</u> A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid

cause of action" or if the complaint is uncertain. CCP § 430.10(e)-(f). The Court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff's allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff's causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Defendant demurs to the Complaint on the grounds that Plaintiff failed to state facts to constitute a cause of action and failed to plead essential elements necessary to establish liability. The Complaint ultimately alleges that Plaintiff was wrongfully removed from the subject premises. Defendant contends that Plaintiff failed to establish that a tenancy existed. The Complaint fails to plead the necessary elements of a tenancy thus giving Plaintiff the right to occupy the premises. The First Amended Complaint that Plaintiff attempted to file shows that these issues may be sufficiently addressed by the filing of an amended complaint.

The Demurrer is **SUSTAINED** with leave to amend. Defendant has provided a proposed order which will be modified to reflect the Court's ruling. Plaintiff shall file an Amended Complaint within 15 days of service of notice of entry of order.

MANION VS. HAT CREEK CONSTRUCTION & MATERIALS, INC.
CASE NUMBER: 24CV-0205505
Tentative Ruling on Motion for Final Approval of Class Action Settlement: Plaintiff Donald Manion brought this wage and hour class action and Private Attorneys General Act ("PAGA") matter against Defendant Hat Creek Construction & Materials, Inc. The parties have settled the matter for a total of $480,000. On February 4, 2026, the Court issued an order granting preliminary approval of the settlement and which certified the class.

<u>Final Approval of the Settlement.</u> The proposed final breakdown for the settlement is as follows:

Total Settlement Amount	**$480,000**
Proposed Attorneys' Fees (33 1/3%)	-$160,000
Litigation Costs and Expenses	-$15,185.30
Settlement Administration Costs	-$6,500
Proposed Class Representative Service Payment	-$10,000.00
PAGA Claim Settlement Allocation Payment to Labor and Workforce Development Agency (LWDA) (75%) Payment to Class Members (25%)	$20,000 (-$15,000) ($5,000)
Net Settlement Amount	**$268,314.70**

The settlement class is comprised of 342 individuals. Individual payments are based on a pro rata amount of pay periods worked during the class period. No claim form was necessary to participate in the settlement. Unless a class member opted out, they will receive a payment based on the time worked as calculated by the settlement administrator.

In deciding whether a class settlement is sufficiently fair, adequate and reasonable to warrant granting final approval, the Court considers several factors, including: 1) the amount offered in settlement; 2) the strength of plaintiff's case and the risks inherent in the continued litigation; 3) the extent of discovery completed and the state of the proceedings when the settlement was reached; 4) the complexity, expense, and likely duration of the litigation in the absence of settlement; 5) the experience and views of class counsel; and 6) the reaction of class members to the proposed settlement. *Wershba v. Apple Computer* (2001) 91 Cal. App. 4th 224, 244-45. A presumption of fairness exists where (1) settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is low. *Nordstrom Com'n. Cases* (2010) 186 Cal. App. 4th 576, 581.

The factors here weigh in favor of granting final approval. Plaintiff has complied with the terms of the Court's Order preliminarily approving of the settlement. In granting preliminary approval, the Court found that Plaintiff's assessment of the value of the class claims was sufficient for the Court to determine that the settlement amount was within the range of reasonableness. Plaintiff has shown that Class Counsel is experienced in wage and hour class action litigation, including settlement, and that before entering into the proposed settlement, counsel thoroughly investigated and engaged in discovery regarding the factual and legal issues in this lawsuit. Plaintiff has further demonstrated that the parties engaged in arm's length bargaining by participating in mediation before an experienced wage-an-hour class-action mediator. Lastly, the overall reaction of the class to the proposed settlement was overwhelmingly positive. Notice was provided to 99% of the class members and not one class member objected. No requests for exclusion or objections were received. With the Court already having preliminarily approved this settlement, Plaintiff having complied with the terms of the Court's February 4, 2026 Order, and no objection being raised, there does not appear to be any reason why the Court should not now grant final approval of the settlement.

<u>Costs and Expenses</u>. Plaintiff seeks reimbursement for costs and expenses of $15,185.30. The Court preliminary approved costs up to $25,000. The incurred and anticipated costs appear to be appropriate. The Court finds that the $15,185.30 in costs and expenses incurred by Plaintiff's counsel are reasonable and were necessary to the prosecution of this action.

<u>Enhancement Award</u>. Plaintiff requests a class representative enhancement payment of $10,000 for Donald Manion. This amount was expressly stated in the class notice. The Court considers the following factors in determining whether to award the class representative an enhancement award: (1) the risk to the class representative in commencing suit, both financial and otherwise; (2) the notoriety and personal difficulties encountered by the class representative; (3) the amount of time and effort spent by the class representative; (4) the duration of the litigation and; (5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation. *In re Cellphone Fee Termination Cases* (2010) 186 Cal. App. 4th 1380, 1394–95, citing *Van Vraken v. Atlantic Richfield Co*. (1995) 901 F. Supp. 294, 299. Plaintiff assisted counsel on many occasions with the investigation and prosecution of this case. Plaintiff provided documentation and relevant information to counsel and spent numerous hours educating counsel on the inner workings of Defendant's operations and timekeeping practice. Plaintiff also participated in the mediation. Plaintiff's efforts have resulted in a monetary benefit to the class members and the State of California. Plaintiff took a risk in bringing the litigation and also signed a general release that the rest of the class did not sign. There has been no objection by any member of the class to the enhancement award. The Court finds that the $10,000 class representative enhancement award to Plaintiff Donald Manion is reasonable.

Settlement Administration Costs. The Court authorized Phoenix Settlement Administrators ("Phoenix") as the settlement administrator with an estimated cost of up to $8,000, however, the actual request is for $6,500. Connor Tevenan, a case manager for Phoenix, provided a declaration that details the work done by Phoenix. Mr. Tevenan also provides a Fixed Fee Invoice showing a charge of $6,500 for Phoenix's services. The Court finds $6,500 to be reasonable for settlement administration costs.

Attorneys' Fees. Plaintiff is requesting attorneys' fees of 1/3 the settlement amount, or $160,000, and argues that the requested fees are reasonable under the common fund doctrine and a lodestar cross-check. Under the common fund doctrine, "when a number of persons are entitled in common to a specific fund, and an action brought by a plaintiff or plaintiffs for the benefit of all results in the creation or preservation of that fund, such plaintiff or plaintiffs may be awarded attorney's fees out of the fund." *Serrano v. Priest* (1977) 20 Cal. 3d 25, 34. Under the lodestar method, a base fee amount is calculated from a compilation of time reasonably spent on the case and the reasonable hourly compensation of the attorney. This base amount is then potentially adjusted using multipliers based on various factors. *Id.* at 48.

The California Supreme Court case of *Laffitte v. Robert Half Intern. Inc.* (2016) 1 Cal. 5th 480 is instructive for evaluating the reasonableness of the instant attorneys' fees request. *Laffitte* held that when a settlement agreement creates a non-reversionary fund, the trial court may calculate attorneys' fees as a percentage of the common fund. There, the Court affirmed an attorneys' fees award of 33.33% of a common fund and found that there are recognized advantages of the percentage method over the lodestar method, "including relative ease of calculation, alignment of incentives between counsel and the class, a better approximation of market conditions in a contingency case, and the encouragement it provides counsel to seek an early settlement and avoid unnecessarily prolonging the litigation." *Id.* at 503. The trial court may cross-check a common fund attorneys' fees award with an abbreviated lodestar calculation for the purpose of "bringing a measure of the time spent by counsel into the trial court's reasonableness determination." *Id.* at 505. Lodestar is calculated by multiplying reasonable attorney time spent by a reasonable hourly rate. *PLCM Group v. Drexler* (2000) 22 Cal. 4th 1084, 1095. A reasonable hourly rate is based upon the prevailing rate for similar work in the pertinent geographic region. *Id.* However, the lodestar calculation is not meant to override the common fund percentage determination and does not impose an absolute maximum or minimum on the fee award. *Laffitte, supra,* 1 Cal. 5th at 504-505. Only when the multiplier calculated by lodestar cross-check is extraordinarily high or low should the Court consider adjusting the percentage to bring the multiplier within a justifiable range. *Id.* at 505.

> A lodestar cross-check thus provides a mechanism for bringing an objective measure of the work performed into the calculation of a reasonable attorney fee. If a comparison between the percentage and lodestar calculations produces an imputed multiplier far outside the normal range, indicating that the percentage fee will reward counsel for their services at an extraordinary rate even accounting for the factors customarily used to enhance a lodestar fee, the trial court will have reason to reexamine its choice of a percentage. (Walker & Horwich, supra, 18 Geo. J. Legal Ethics at p. 1463.)

Laffitte v. Robert Half Internat. Inc.(2016) 1 Cal. 5th 480, 504.

Plaintiff has provided evidence that 141 hours will be spent on the case between counsel Mehrdad Bokhour and counsel Joshua Falakassa. Based on the rates suggested, the lodestar would be $104,087.50. This results in a multiplier of 1.53. "Multipliers can range from 2 to 4 or even higher." *Wershba v. Apple Computer, Inc.* (2001) 91 Cal. App. 4th 224, 255 (overruled on other grounds in *Hernadez v. Restoration Hardware, Inc.* (2018) 4 Cal. 5th 260). The Court finds the 1.53 multiplier is not "extraordinarily high." *Laffitte, supra* 1 Cal.5th at 505. The Court finds that the multiplier is appropriate and that attorney's fees will be awarded in the amount of $160,000.

The motion is **GRANTED.** Plaintiff submitted a Proposed Order. The Court retains jurisdiction pursuant to CRC 3.769(h). The Court sets the matter on **Monday, May 3, 2027 at 9:00 a.m. in Department 63** for a hearing on compliance. Prior to the hearing, Plaintiff is expected to provide evidence that the settlement checks were mailed, that any unclaimed funds were paid to the *cy pres* recipient Legal Services of Northern California, and that all fees and costs have been paid as outlined above. Evidence should be filed no later than April 26, 2027.

MCCRACKEN VS. MIRANDA
CASE NUMBER: 25CV-0207647
Tentative Ruling on Motion to Enforce Settlement Agreement and Enter Judgment Pursuant to CCP § 664.6: Plaintiff Dustin McCracken moves for entry of judgment and enforcement of a written settlement agreement. Defendant Geniveve Miranda does not oppose entry of judgment but does oppose enforcement of the agreement. Defendant's opposition was untimely. Despite Plaintiff's objection to the untimely filing, the Court in its discretion will consider the opposition.

Merits. This matter settled pursuant to the parties written settlement agreement executed on October 2, 2025. As part of the written agreement, the parties stipulated to the Court retaining jurisdiction under § 664.6. CCP § 664.6(a) reads:

> If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

CCP § 664.6.

Both parties agree to entry of judgment of the settlement agreement, to sell the property, and do not dispute the terms of the agreement. Upon review of the evidence, it appears that neither party has acted in compliance with the settlement agreement therefore enforcement is currently inappropriate. Plaintiff contends that Defendant breached the agreement when she refused to accept a third-party offer to purchase the property and moved back into the home. Defendant contends that her conduct was authorized by a take-over provision when Plaintiff initially breached the agreement by failing to perform all agreed upon repairs and the repairs that were initiated were not completed in the manner specified by the agreement. Defendant submitted evidence that shows that at least some of the initial repairs were not completed prior to listing. The parties do not dispute that an offer was not received within 14-days following completion of the repairs that were done, and the photos show that subsequent required repairs were also not completed. Pursuant to the agreement, Plaintiff's failure to complete the repairs in the time agreed triggered a provision which permitted Defendant to hire a licensed contractor and new listing agent. The agreement does not permit Defendant to move back into the home.

Plaintiff also requests attorney's fees and costs in the amount of $2,460.00 for bringing the motion. Section 16 of the written settlement agreement provides that "if litigation is initiated based on a claim that there has been a breach of this Agreement, or enforcement of this Agreement is required pursuant to Section 23 of this Agreement, the prevailing party in any such lawsuit shall be entitled to an award of reasonable attorney's fees and costs."

Considering the alleged breach of the agreement by both parties, the Court does not intend to grant the motion for enforcement of the agreement or attorney's fees and costs and defers ruling on the motion at this time. The Court notes a settlement conference is currently set for November 30, 2026. The Court believes that a resolution may be reached and advances the settlement conference to **<u>Monday, August 3, 2026, at 1:30 p.m. in Department 64</u>**. The clerk is <u>directed</u> to vacate the November 30, 2026, settlement conference.

IN RE: SULLIVAN
CASE NUMBER: 26CV-0210344
Tentative Ruling on Petition for Change of Name: Petitioner Brandon Charles Sullivan seeks to change his name to Brandon Charles Mitchell. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

TRILLO, ET AL. VS. HINESLEY, ET AL.
CASE NUMBER: 25CV-0209540
Tentative Ruling on Demurrer: Defendant Novo Nordisk Inc. demurs to the First Cause of Action for Wrongful Death, the Fifth Cause of Action for Products Liability-Failure to Warn, and the Seventh Survival Cause of Action of the First Amended Complaint filed by Plaintiffs, George Ruduan Hage III and Victor Trillo. Plaintiffs oppose the demurrer.

<u>Meet and Confer</u>. CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Demurring or Moving Party Regarding Meet and Confer filed on June 5, 2026, indicates the parties met and conferred by telephone and did not reach an agreement.

<u>Request for Judicial Notice</u>. Defendant has requested the Court take judicial notice of: (1) the FDA-approved prescribing information and medication guide for Wegovy as it existed in July of 2025; (2) the FDA-approved prescribing information and medication guide current as of the date of filing; (3) the USDA website, demonstrating products, approval dates and history, letters, labels and reviews for Wegovy current as of the date of filing; (4) the FDA-approved prescribing information and medication guide for Wegovy, as it existed at the time of original approval on June 4, 2021; (5) the *Hage* Complaint (210078); and (6) a copy of the original *Trillo* Complaint (209540). The request is granted pursuant to Evid. Code §§ 452 and 453.

<u>Merits</u>. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A

demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action" or if the complaint is uncertain. CCP § 430.10(e)-(f). The Court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff's allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff's causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Duplicative filings. Novo Nordisk, Inc. demurrers to the First, Fifth, and Seventh Causes of Action on the grounds that there is a similar action pending under CCP § 430.10(c). CCP § 430.10(c) provides that a party may demurrer on the grounds that "[t]here is another action pending between the same parties on the same cause of action." Defendant identifies Shasta County case 209540 as a subsequent case filed which is identical to the First Amended Complaint in the present matter. The Court notes the complaint in case 210078 was dismissed without prejudice on June 30, 2026. Considering the dismissal, the demurer is **OVERRULED** on the grounds of a duplicative filing.

First Cause of Action. The First Cause of Action for Wrongful Death alleges that Novo Nordisk Inc. breached their duty of care to the decedent by failing to "provide adequate warnings regarding restart protocols and cardiovascular risks" regarding the subject product. Defendant argues that the claim is barred by the learned intermediary doctrine. The learned intermediary doctrine provides that "…in the case of prescription drugs, the duty to warn runs *to the physician*, not to the patient." *Carlin v. Superior Court* (1996) 13 Cal.4th 1104.

In opposition, Plaintiffs argue that the learned intermediary doctrine does not shield a manufacturer from liability when warnings to a physician are inadequate. Plaintiffs cite *Himes v. Somatics, LLC* (2024) 16 Cal.5th 209, 222, which states that "the manufacturer fulfills its general duty of care owed to the patient by providing an adequate warning to the patient's physician. If the manufacturer fails to provide an adequate warning to the patient's physician, then the patient may sue asserting negligence for breach of its general duty of care or asserting strict liability for marketing a product that has been rendered defective due to the inadequate warning."

Here, the First Amended Complaint alleges that Novo Nordisk, Inc. breached its duty of care owed to the *decedent* by failing to provide adequate warnings regarding restart protocols and cardiovascular risks. The First Amended Complaint does not allege that Novo Nordisk, Inc. failed to provide adequate warnings to the decedent's physician. The Demurrer is **SUSTAINED** with leave to amend as to Defendant Novo Nordisk, Inc. in the First Cause of Action regarding the issue of duty.

Fifth Cause of Action. The Fifth Cause of Action of the Complaint for Products Liability- Failure against Novo Nordisk, Inc. alleges that Defendant failed to provide adequate warnings to healthcare providers and patients of specified risks associated with the subject product. "The rules of strict liability require a plaintiff to prove only that the defendant did not adequately warn of a particular risk that was known or knowable in light of the generally recognized and prevailing best scientific and medical knowledge available at the time of manufacture and distribution." *Anderson v. Owens-Corning Fiberglas Corp*., supra, 53 Cal.3d 987. "Drug manufacturers need only warn of risks that are actually known or reasonably scientifically knowable." *Carlin v. Superior Court*, supra, 13 Cal.4th 1104. The First Amended Complaint fails to allege that the specified risks were actually known or reasonably scientifically knowable at the time of manufacture and distribution, thus giving rise to a failure to warn.

Additionally, as stated above the duty to warn runs to the physician, not the patient. *Carlin v. Superior Court*, supra, 13 Cal.4th 1104. The Fifth Cause of Action alleges that defendant failed to warn both healthcare providers and patients. The Demurrer as to the Fifth Cause of Action is **SUSTAINED** with leave to amend regarding Defendant's duty to warn patients and whether the risks were actually known or reasonably knowable to Novo Nordisk, Inc. at the time of manufacture and distribution.

Causation. Novo Nordisk, Inc. also demurrers to the First Amended Complaint on the grounds that Plaintiffs fail to establish medical causation. "A plaintiff asserting causes of action based on a failure to warn must prove not only that no warning was provided or the warning was inadequate, but also that the inadequacy or absence of the warning caused the plaintiff's injury." *Motus v. Pfizer, Inc.* (2001) 196 F.Supp.2d 984, 991. If a drug manufacturer breached its duty to adequately warn physicians, "a plaintiff may establish causation by showing that the physician would have communicated the stronger warning to the patient and an objectively prudent person in the patient's position would have thereafter declined the treatment." *Himes v. Somatics, LLC*, supra, 16 Cal.5th 209.

Here, the Complaint alleges that the failure to warn of the above risks was a substantial factor in causing Defendant Hinesley to prescribe and Defendant Stafford to dispense the dosage that allegedly caused the toxic reaction that led to the decedent's death. Plaintiffs do not allege that the physicians would have communicated the stronger warning and that a prudent person in the decedent's position would have declined treatment.

The Demurrer as to the First and Fifth Causes of Action is **SUSTAINED** with leave to amend regarding causation.

Seventh Cause of Action. The Seventh Cause of Action of the Complaint is a Survival Action. CCP § 377.30 provides that "[a] cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest…and an action may be commenced by the decedent's personal representative or, if none, by the decedent's successor in interest." Here, the First and Fifth Causes of Action are the only other causes of action against Novo Nordisk Inc. As stated above, the Demurrer is sustained as to the First and Fifth Causes of Action, therefore the Survival Action cannot endure. The Demurrer is **SUSTAINED** with leave to amend as to Defendant Novo Nordisk Inc., in the Seventh Cause of Action.

In summary, the Demurrer is **SUSTAINED** with leave to amend as to the First, Fifth, and Seventh Causes of Action regarding duty to warn physicians/patients and whether the alleged risks were actually or reasonably known to Novo Nordisk Inc. at the time of manufacture and distribution. Defendant shall prepare the order. Plaintiff shall file a Second Amended Complaint within 15 days of service of notice of entry of order.

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9:00 a.m. Review Hearings

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BARTLETT, ET AL. VS. GENERAL MOTORS LLC
CASE NUMBER: 25CV-0207553

This matter is on calendar for review regarding status of judgment/dismissal. A Conditional Notice of Settlement was filed on January 9, 2026 which indicates this matter would be dismissed no later than May 11, 2026. No dismissal is on file. The Court intends on dismissing this case pursuant to California Rule of Court 3.1385(c)(2) unless the parties appear at today's hearing and show good cause why the case should not be dismissed.

BOWERS, ET AL. VS. RIDGELINE BUILDERS GROUP, INC., ET AL.
CASE NUMBER: 25CV-0208325

This matter is on calendar for review regarding status of the stay. On February 2, 2026, the Court issued an order staying this matter while the parties complied with the Right to Repair Act's prelitigation procedures. The parties have submitted a joint case management statement which requests additional time to review expert reports and proposed repairs. This matter is continued to **Monday, October 19, 2026, at 9:00 a.m. in Department 64.** The parties are ordered to submit a joint status statement at least five days prior to the review hearing. **No appearance is necessary on today's calendar.**

CAICEDO VS. SUNBABE, LTD
CASE NUMBER: 25CV-0208229

This matter is on calendar for review regarding status of responsive pleadings. This action was filed on July 18, 2025. A proof of service was filed on April 21, 2026 which reflects service on the Defendant on April 6, 2026. No responsive pleading has been filed. No request for default has been filed. **An appearance is necessary on today's calendar to provide the Court with a status of the responsive pleadings and/or request for default.**

IN RE: CHRISTIAN
CASE NUMBER: 26PB-0033218

This matter is on calendar for review regarding status of the litigation. A Petition for Approval of compromise of Claim of the minor Plaintiff has been filed and is set for hearing on July 27, 2026. This matter is continued to **Monday, July 27, 2026, at 9:00 a.m. in Department 64** for status of the litigation. **No appearance is necessary on today's calendar.**

CONSOLIDATED ELECTRICAL DISTRIBUTORS, INC. VS. GSJ CONSTRUCTION COMPANY, INC., ET AL.
CASE NUMBER: 24CVG-00924

This matter is on calendar for review regarding status of default judgment. All Defendants have been defaulted or have been dismissed. No Request for Entry of Default Judgment has been submitted. **An appearance is necessary on today's calendar to provide the status of the requests for entry of default judgment.**

DISCOVER BANK VS. ALEXANDER
CASE NUMBER: 24CVG-01731

This matter is on calendar for review regarding status of judgment/dismissal. A Conditional Notice of Settlement was filed on January 5, 2026 which indicates that the case would be dismissed no later than December 26, 2026. No dismissal is on file. CRC 3.1385(c)(2) provides the Plaintiff 45 days after the specified dismissal date (December 26, 2026) to file the dismissal. Therefore, Plaintiff has until February 9, 2027 to dismiss this action. The Court notes that today's hearing is set on a date prior to the deadline of February 9, 2027. In light of the foregoing, this matter is continued to **Monday, February 22, 2027, at 9:00 a.m. in Department 64** for status of judgment/dismissal. **No appearance is necessary on today's calendar.**

ERNEST VS. HAVEL, ET AL.
CASE NUMBER: 26CV-0210025
This matter is on calendar for review regarding status of the pleadings. The Court set aside the defaults of the Defendants on June 3, 2026. Defendants filed their answer on June 11, 2026. The matter is at issue. The Court confirms the future mandatory settlement conference date of November 30, 2026 and the trial date of January 26, 2027. **No appearance is necessary on today's calendar.**

HALL VS. SMISOR
CASE NUMBER: 25CV-0206961
This matter is on calendar for review regarding status of counsel. At the prior hearing on May 26, 2026, the Court was informed that Plaintiff would be obtaining new counsel. A Substitution of Attorney was filed on June 11, 2026. The issue with counsel has been resolved. The Court notes that this matter is at issue and is ready to be set for trial. Both sides have posted jury fees. The Court designates this matter as a Plan III case and intends on setting a jury trial date no later than February 2, 2027. **An appearance is necessary on today's calendar to provide the Court with available trial dates.**

MAGNOLIA BANK, INC. VS. ANDERSON BIO GROUP, LLC, ET AL.
CASE NUMBER: 25CV-0208805
This matter is on calendar for review regarding status of bankruptcy. A Notice of Stay of Proceedings was filed on December 30, 2025. On January 9, 2026, the Court issued an order vacating the mandatory settlement conference and trial date based on the Notice of Stay. No updated information has been provided to the Court. **An appearance is necessary on today's calendar to provide the Court with a status of the bankruptcy stay.**

MCMATH VS. JOHNSON & JOHNSON
CASE NUMBER: CVCV17-0188579
This matter is on calendar for review regarding status of the coordinated action. This matter has been transferred to Los Angeles County Superior Court for coordination in JCCP No. 4872. While this litigation has been coordinated, this Court has an obligation to monitor this action until it is dismissed or remanded back to this Court. To that end, the Court sets review hearings in order to obtain a status of the JCCP proceeding. No status has been provided related to the coordinated action. No dismissal has been filed. **An appearance is necessary on today's calendar to provide the Court with a status of the coordinated action.**

PORTFOLIO RECOVERY ASSOCIATES, LLC VS. FOOTE
CASE NUMBER: 25CVG-01284
This matter is on calendar for review regarding status of default. Defendant has been served but has not appeared. No request for entry of default has been filed. **An appearance is necessary on**

today's calendar to provide the Court with a status of the entry of default.

SNELL VS. SIERRA PACIFIC INDUSTRIES, INC.
CASE NUMBER: 25CV-0208748

This matter is on calendar for review regarding status of arbitration of Plaintiff's Individual PAGA claim and status of say as to Plaintiff's Representative PAGA claim. The parties have submitted a joint status report indicating that arbitration is proceeding. This matter is continued to **Monday, October 19, 2026, at 9:00 a.m. in Department 64** for review regarding status of arbitration. The parties are ordered to submit a joint status report at least five days before the review hearing. **No appearance is necessary on today's calendar.**

TRILLO, ET AL. VS. HINESLEY, ET AL.
CASE NUMBER: 25CV-0209540

This matter is on calendar for review regarding status of the case. The Complaint was filed on December 30, 2025; however, the case was subsequently removed to federal court on January 22, 2026. The case was remanded back to the Superior Court on April 23, 2026. During the time of removal Plaintiffs filed a First Amended Complaint and Summons. Proof of service of the First Amended Complaint and Summons has not been filed regarding any named Defendants. The Court sustained Defendant Novo Nordisk Inc.'s demurrer to Plaintiff's First Amended Complaint with leave to amend on this morning's Law & Motion calendar. This matter is continued to **Monday, October 12, 2026, at 9:00 a.m. in Department 64** for review regarding status filing a Second Amended Complaint and status of service. **No appearance is necessary on today's calendar.**